



REPUBLIC OF THE PHILIPPINES
PROVINCE OF LAGUNA
CITY OF BIÑAN
OFFICE OF THE CITY COUNCIL



f. *Malin*
ENGR. EDWARD A. REYES
SECRETARY

CITY ORDINANCE

EXCERPT FROM THE MINUTES OF REGULAR SESSION OF THE CITY COUNCIL OF BIÑAN HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL (ANNEX BUILDING), BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED 13 SEPTEMBER 2016.

PRESENTS:

Hon. ANGELO B. ALONTE	- City Vice Mayor/Presiding Officer
Hon. LIZA L. CARDEÑO	- City Councilor
Hon. JONALINA A. REYES	- "
Hon. WILFREDO I. BEJASA, JR.	- "
Hon. MARIZ LINDSEY V. TAN GANA	- "
Hon. DONNA ANGELA P. YATCO	- "
Hon. GERONIMO D. ROMANTIGUE	- "
Hon. JAIME M. SALANDANAN	- "
Hon. JAYSON A. SOUZA	- "
Hon. ALEXIS H. DESUASIDO	- "
Hon. FLAVIANO D. PECAÑA	- "
Hon. RAMON C. CARRILLO	- "
Hon. ROMMEL R. DICDICAN	- "(ABC-President)"
Engr. EDWARD A. REYES	- Secretary, City Council

ABSENT:

Hon. Councilor ALVIN Z. GARCIA

CITY ORDINANCE NO. 05-(2016)

AN ORDINANCE PROHIBITING THE INDISCRIMINATE THROWING AND DUMPING OF GARBAGE, RUBBISH OR ANY KIND OF WASTE IN OPEN OR PUBLIC PLACES AND MANDATING ALL RESIDENTIAL AND COMMERCIAL OR BUSINESS ESTABLISHMENT TO CLEAN AND MAINTAIN THE CLEANLINESS OF THEIR FRONTAGE AND SURROUNDINGS AND PROVIDING PENALTIES THEREOF, APPROPRIATING FUNDS THEREFOR, AND FOR OTHER PURPOSES.

Authorized by: Councilor ALEXIS H. DESUASIDO

WHEREAS, Section 458 (4) (sl) of Republic Act No. 7160, otherwise known as the Local Government Code of 1991, that Sangguniang Panglungsod shall enact an ordinance that prohibit activities relative to the use of land, building, and structure within the City in order to promote the general welfare and for said purpose shall; require that building and premises thereof and any land within the City be kept and maintained in a sanitary condition; impose penalties for any violation thereof; or upon failure to comply with the said requirement have the work done at the expense of the owner administration or tenant concerned;

WHEREAS, Presidential Decree No. 825, Section 1, states, that citizens and residents of the Philippines, all universities, college and school and other similar institutions, private, so as public, all commercial and industrial establishment, such as hotels, restaurants, hospitals, cinema houses, public markets, department stores, groceries and the like, all public conveyances, all residential houses, and all other establishment of any kind shall undertake the

For attestation by Engr. Panglansod
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Section 4. Rights and Responsibility under this ordinance

4.1 It is the moral duty of each every owner and/or tenant of any residential building to clean the area of five meters from the nearest the building of any dead animals and rodents, broken or empty or porcelain, used or empty cans canisters, cigars, cigarettes or grass, waste, or used paper, fruit peelings, plastic or plastic rubber, rags, fallen leaves, twigs or branches of trees, swift and a garbage, rubbish, trash or waste materials. With respect to all buildings enclosed with walls, or fence, the **FIVE METER** distance measured from the nearest wall or fence.

4.2 Each homeowner, tenant, manager or person-in-charge of any any room or space therein shall provide a receptacle in which he must deposit or cause to be deposited all such garbage, rubbish, trash or waste materials and which receptacle shall be maintained in sanitary condition by all times by him or his representative and placed in such a location that is accessible but not obtrusive to the pedestrians.

4.3 In the case of commercial or industrial buildings, the responsibility In the next preceding article shall be borne by the manager or persons-in-charge of the entity occupying the building or space therein and the owners of the buildings jointly if it is a juridical entity the manager or persons In-charge thereof shall be held responsible.

4.4 It is the responsibility of the owner/driver of public utility vehicle plying in the City of Binan to install a trash/clutter receptacle with lid in a conspicuous area inside the vehicle and obliged to clean and maintain the cleanliness of their respective vehicle at all times.

4.5 Responsibility of the homeowner, tenant, manager or person-in-charge to coordinate with the Binan City General Services Office so that the garbage shall be collected regularly and properly disposed.

4.6 All pedestrians shall also be held responsible for the maintenance of the cleanliness and orderliness sought to be achieved under this title

Section 5. Prohibited Acts

a) It is unlawful to dump, throw or litter, garbage, refuse or any form of solid waste in public places and immediate surroundings, including vacant lots, rivers, canals, drainage and other water ways, as defined in Section 4, of this ordinance and to urinate, defecate and spit in public places.

b) The owners/residents, lessees or occupants of residential houses/dwelling units, vacant lots, the owners, proprietors, operators/administrators or dormitories, condominiums, commercial buildings and offices whether private or public institutions like schools and churches are obliged to sweep everyday, clean and maintain cleanliness of their respective frontage and immediate surroundings, including the sidewalks and street gutters fronting their premises, as defined in Section 4 hereof

c) It is unlawful to bring out garbage on the property line of residential and commercial establishments or any part of the road which must be stored in properly sealed plastic containers and to be brought outside only upon arrival of the authorized garbage hauling trucks in their respective localities.

d) It is unlawful for any person to place, store, or dump construction wastes or debris, junked or under repair vehicles, dilapidated appliances and other immovable objects in any part of the road, street or avenue or in any sidewalk which may obstruct or impede the vehicular and pedestrian traffic

e) The owners, operators, drivers and conductors of public utility vehicles plying within the City are obliged to clean and maintain the cleanliness of their respective vehicles at all times and to provide a modest trash receptacles inside their vehicles as provided in City Ordinance No

f) It is unlawful for the owners, operators, proprietors of public trucks, tomes, tankers, delivery vans, and other transportation facilities to spill, scatter or litter any kind of

waste or garbage as of defined in Section 4 hereof, or any on the roads on any part of the street or avenue on their way to their destination;

g) It is unlawful for any person, or group of individuals, to enter into or offer the services for a fee for the disposal of domestic waste of household in a community, unless otherwise, authorized and the City of Binan or Homeowners' association in private form of livelihood projects to propagate reduction, recycling of waste, and in accordance with the Solid Waste Management Act, known as Republic act 9003.

h) It is unlawful for any person/s, private and public corporations and promotional companies, movie producers, professionals and contractors to post, install, display any kind or form of billboard, posters, streamers, tarpaulins, professional service advertisements and clutters in any part of the road, sidewalk, center island, posts, and open space

i) It is unlawful for any person, private or group of persons or public to hire a minor to dump, throw or litter garbage, refuse or any in vacant public place or lot and immediate surroundings.

Section 6. Conduct of inspection and Supervision.

The POSO (Public Order Safety Office), CENRO (City Environmental Office), PNP and City Officials including the Barangay Police and Anti-Littering Task Force shall apprehend all violators of this ordinance and implement and supervise this ordinance and to conduct regular inspection of all residential, commercial establishments from 5:30 am to 9:30 am and then from 5:30 pm to 9:30 pm in order to ascertain and establish whether the guidelines under Section; ordinance is strictly observed and followed. Random inspection shall be from time to time by the Anti-Littering Task Force during the 24 hour-period, to deter dumping in bulk.

Section 7. Penalties

(a) Any person found violating Section 5, paragraph (a), (c), (e) and A is ordinance shall be penalized by a fine of Five Hundred Pesos (P 500.00) and a community service of one (1) day in the CENRO (City Environmental Office) Office of the City of Binan.

(b) For violators of paragraphs (a) (b) (d) (f) (g) (h) and (i) of Section 5 the owner, proprietor, administrator, operator, manager of any business establishment as the case may be shall be penalized by a fine of Two Thousand Pesos (P2,000.00), or community service for five (5) days by the City Environment Office (CENRO) of the City of Binan.

Section 8. Special Provisions

(a) For illegally dumping of bulky waste, factory/construction debris and other similar nature that requires hauling, the violator shall be fined to pay an additional hauling fee of One Hundred Pesos (P100.00) per cubic meter in addition to the penalty provided in Section 7

(b) The violator shall be required to pay a towing fee of One Thousand Five Hundred Pesos (P1,500.00) in addition to the fine provided in Section 7 hereof, if the junk vehicles illegally dumped are towed by the Traffic Management Office (TMO).

Section 9. Disposition of Fines

The corresponding fines to be collected shall be shared in favor of the following:

(1) Seventy percent (70%) shall form part of the General Fund of the City where the violation was committed within the jurisdiction of Binan City.

(2) Thirty percent (30%) shall be allocated to the Barangay where the violation was committed. The collected penalty shall be turned-over to the City for proper disposition in accordance with the provision of the existing law

(3) The fees to be collected under Section 3 of this ordinance for hauling of illegal dumping of bulky waste, factory/construction waste and other similar in nature that